

upon the *corpus* of the property, that is, upon the remainderman.

9. **Reeves v. Creswick.** — In *Reeves v. Creswick* (*b*), where leaseholds for *lives* were devised to trustees upon trust for A. for life, with remainder to her children, and a bill was filed by the trustees for the purpose of having the expenses of renewal raised, the following scheme, which had been approved by the Master, was directed to be carried into effect. The period of enjoyment of the property by the tenant for life under each of the old leases being the joint duration of her own life and that of the then surviving *cestuis que vie* named in such lease, and the period of her enjoyment of the property under each corresponding renewed lease being in like manner the joint duration of her life, and those of the new *cestuis que vie*, or the longest liver of them; the difference between the values of the estates for

[*376] * these two periods gave the benefit derived by the

tenant for life from the renewals in question; and the residue of the increased value of the property expressed the benefit derived from the renewals by the remainderman. Calculations were accordingly made by the actuary of an insurance office, upon the above principles, of the benefit derived by the respective parties from the renewal of each lease, and the fines and expenses of renewal being divided in the proportions so ascertained, the total amount, which thereupon appeared to fall to the share of the tenant for life, was directed to be insured upon her own life for the purpose of providing, upon her decease, for the payment of a corresponding part of the principal of the mortgage debt to be raised upon the property. The policy of insurance was ordered to be assigned to the mortgagee, and directions were given for paying the premiums on the policy, and for keeping down the interest on the entire mortgage-debt out of the annual rents and profits of the estates. The only observation that occurs upon the propriety of this arrangement is, whether the tenant for life ought to have been directed to keep down the interest of the *entire* mortgage-debt out of the annual rents as between him and the remainderman,

(*b*) 3 Y. & C. 715. See as to this case, note (*a*), 369, *supra*.